

STATE OF NEW YORK

8841--A

Cal. No. 812

IN SENATE

January 8, 2026

Introduced by Sens. RIVERA, MARTINS, MAY, C. RYAN, SKOUFIS -- read twice and ordered printed, and when printed to be committed to the Committee on Health -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the tax law and the public health law, in relation to allowing individuals to register in the "donate life registry" through personal income tax filings

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The tax law is amended by adding a new section 171-bb to
2 read as follows:

3 § 171-bb. Donate life registry. 1. For the purposes of this section,
4 the term "donate life registry" shall mean the New York state donate
5 life registry for organ, eye and tissue donations established pursuant
6 to section forty-three hundred ten of the public health law.

7 2. For each taxable year beginning on or after January first, two
8 thousand twenty-seven, the department shall include an opportunity on
9 resident income tax returns prepared and filed through commercial tax
10 preparation software approved by the commissioner to allow each individ-
11 ual filing such a tax return, including spouses filing a joint return,
12 heads of households, or surviving spouses, to provide written consent
13 for the donate life registry to enroll such individual in the donate
14 life registry, and for the department to share such individual's infor-
15 mation with the donate life registry as provided under subdivision three
16 of this section.

17 3. Beginning on and after January first, two thousand twenty-seven,
18 notwithstanding any other provision of law to the contrary, the depart-
19 ment shall provide to the donate life registry information from each
20 resident individual's income tax return that provides such individual's
21 written consent to enroll in the donate life registry and to share such
22 individual's information with the donate life registry including but not
23 limited to, an individual's name, social security number, and additional
24 data.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 4. The operator of the donate life registry shall use the information
2 received from the department pursuant to this section for the purposes
3 of enrolling individuals in the donate life registry.

4 5. On or before January first, two thousand twenty-seven, the depart-
5 ment shall enter into a data sharing agreement with the donate life
6 registry that is consistent with the provisions of this section.

7 § 2. Paragraph (a) of subdivision 5 of section 4310 of the public
8 health law, as amended by section 2 of chapter 128 of the laws of 2025,
9 is amended to read as follows:

10 (a) Such organ, eye and tissue registration of consent to make an
11 anatomical gift can be made through: (i) indication made on the applica-
12 tion or renewal form of a driver's license, (ii) indication made on a
13 non-driver identification card application or renewal form, (iii) indi-
14 cation made on a voter registration form pursuant to subdivision five of
15 section 5-210 of the election law, (iv) indication made on the applica-
16 tion for, or manual renewal application by an account holder of, health
17 care coverage offered through the state health benefit exchange, (v)
18 enrollment through the donate life registry website, (vi) paper enroll-
19 ment submitted to the donate life registry, (vii) indication made on the
20 application or renewal form of a hunting, fishing or trapping license
21 issued pursuant to title seven of article eleven of the environmental
22 conservation law, (viii) indication made on transactions administered by
23 the office of temporary and disability assistance through the mybene-
24 fits.ny.gov website, or any such successor website; (ix) indication made
25 on applications, renewals or related transactions for college financial
26 aid, grants, or scholarships offered or administered through any website
27 maintained by the higher education services corporation; (x) trans-
28 actions conducted through the patient-facing portal of an individual's
29 electronic health records; ~~(or)~~ (xi) indication made on any personal
30 income tax document in accordance with the provisions of section one
31 hundred seventy-one-bb of the tax law; or (xii) through any other method
32 identified by the commissioner. The department shall establish a means
33 by which to register the consent given by individuals who are sixteen or
34 seventeen years of age in the donate life registry, and shall make
35 registration available by any of the methods provided in subparagraphs
36 (i), (ii), (iii), (iv), (v), (vi), (vii), (viii), (ix), (x) ~~and~~, (xi)
37 and (xii) of this paragraph.

38 § 3. Paragraph (a) of subdivision 5 of section 4310 of the public
39 health law, as amended by section 3 of chapter 128 of the laws of 2025,
40 is amended to read as follows:

41 (a) Such organ, eye and tissue registration of consent to make an
42 anatomical gift can be made through: (i) indication made on the applica-
43 tion or renewal form of a driver's license, (ii) indication made on a
44 non-driver identification card application or renewal form, (iii) indi-
45 cation made on a voter registration form pursuant to subdivision five of
46 section 5-210 of the election law, (iv) indication made on the applica-
47 tion for, or manual renewal application by an account holder of, health
48 care coverage offered through the NY State of Health, the official
49 Health Plan Marketplace, (v) enrollment through the donate life registry
50 website, (vi) paper enrollment submitted to the donate life registry,
51 (vii) indication made on the application or renewal form of a hunting,
52 fishing or trapping license issued pursuant to title seven of article
53 eleven of the environmental conservation law, (viii) indication made on
54 transactions administered by the office of temporary and disability
55 assistance through the mybenefits.ny.gov website, or any such successor
56 website; (ix) indication made on applications, renewals or related tran-

sactions for college financial aid, grants, or scholarships offered or administered through any website maintained by the higher education services corporation; (x) indication made by an insured and/or applicant for insurance during enrollments, renewals, and the initial process for an insured in setting up an online member service portal with their insurer for accident and health insurance policies and contracts issued pursuant to article forty-four of this chapter, article forty-two of the insurance law, or article forty-three of the insurance law, excepting renewals made through the NY State of Health, the official Health Plan Marketplace, other than those specifically referenced in subparagraph (iv) of this paragraph and paragraph (v) of subdivision one of section two hundred six of this chapter; and provided, however, that nothing in this section shall apply to the medical assistance program under title eleven of article five of the social services law; (xi) transactions conducted through the patient-facing portal of an individual's electronic health record; ~~or~~ (xii) indication made on any personal income tax document in accordance with the provisions of section one hundred seventy-one-bb of the tax law; or (xiii) through any other method identified by the commissioner. The department shall establish a means by which to register the consent given by individuals who are sixteen or seventeen years of age in the donate life registry, and shall make registration available by any of the methods provided in subparagraphs (i), (ii), (iii), (iv), (v), (vi), (vii), (viii), (ix), (x), (xi) ~~and~~, (xii) and (xiii) of this paragraph.

§ 4. Subparagraph (i) of paragraph (b) of subdivision 5 of section 4310 of the public health law, as amended by section 4 of chapter 662 of the laws of 2024, is amended to read as follows:

(i) Where required by law for transactions described in subparagraphs (i), (ii), (iv), (vii), (viii), (ix), (x) ~~and~~, (xi) and (xii) of paragraph (a) of this subdivision, the commissioner shall ensure, in consultation with the head of any agency required to implement such transaction, that space is provided on any required form so that the applicant shall register or decline registration in the donate life registry for organ, eye and tissue donations under this section and that the following is stated on the form in clear and conspicuous type:

"You must fill out the following section: Would you like to be added to the Donate Life Registry? Check box for 'yes' or 'skip this question'."

§ 5. Subparagraph (i) of paragraph (b) of subdivision 5 of section 4310 of the public health law, as amended by section 5 of chapter 662 of the laws of 2024, is amended to read as follows:

(i) Where required by law for transactions described in subparagraphs (i), (ii), (iv), (vii), (viii), (ix), (x), (xi) ~~and~~, (xii) and (xiii) of paragraph (a) of this subdivision, the commissioner shall ensure, in consultation with the head of any agency required to implement such transaction, that space is provided on any required form so that the applicant shall register or decline registration in the donate life registry for organ, eye and tissue donations under this section and that the following is stated on the form in clear and conspicuous type:

"You must fill out the following section: Would you like to be added to the Donate Life Registry? Check box for 'yes' or 'skip this question'."

§ 6. Paragraph 1 of subsection (e) of section 697 of the tax law, as amended by chapter 477 of the laws of 1998, is amended to read as follows:

(1) Except in accordance with proper judicial order, section one hundred seventy-one-bb of this chapter, or as otherwise provided by law, it shall be unlawful for the commissioner, any officer or employee of the department, any person engaged or retained by such department on an independent contract basis, any depository to which any return may be delivered as provided in subsection (h) or (i) of this section, any officer or employee of such depository, or any person who, pursuant to this section, is permitted to inspect any report or return or to whom a copy, an abstract or a portion of any report or return is furnished, or to whom any information contained in any report or return is furnished, to divulge or make known in any manner the amount of income or any particulars set forth or disclosed in any report or return required under this article, under section one hundred seventy-one-a or section one hundred seventy-one-h of this chapter, or under this article and article eighteen of the labor law.

§ 7. The opening paragraph of paragraph 3 of subsection (e) of section 697 of the tax law, as amended by chapter 284 of the laws of 2016, is amended to read as follows:

Nothing herein shall be construed to prohibit the department, its officers or employees from furnishing information to the office of temporary and disability assistance relating to the payment of the credit for certain household and dependent care services necessary for gainful employment under subsection (c) of section six hundred six of this article and the earned income credit under subsection (d) of section six hundred six of this article and the enhanced earned income credit under subsection (d-1) of section six hundred six of this article, or pursuant to a local law enacted by a city having a population of one million or more pursuant to subsection (f) of section thirteen hundred ten of this chapter, only to the extent necessary to calculate qualified state expenditures under paragraph seven of subdivision (a) of section four hundred nine of the federal social security act or to document the proper expenditure of federal temporary assistance for needy families funds under section four hundred three of such act. The office of temporary and disability assistance may redisclose such information to the United States department of health and human services only to the extent necessary to calculate such qualified state expenditures or to document the proper expenditure of such federal temporary assistance for needy families funds. Nothing herein shall be construed to prohibit the delivery by the commissioner to a commissioner of jurors, appointed pursuant to section five hundred four of the judiciary law, or, in counties within cities having a population of one million or more, to the county clerk of such county, or to the clerk of the court or jury administrator of a United States district court appointed pursuant to title twenty-eight of the United States Code, section 1836(b)(2), of a mailing list of individuals to whom income tax forms are mailed by the commissioner for the sole purpose of compiling a list of prospective jurors as provided in article sixteen of the judiciary law or title twenty-eight of the United States Code. Provided, however, such delivery shall only be made pursuant to an order of the chief administrator of the courts, appointed pursuant to section two hundred ten of the judiciary law or an order of a chief judge of any United States district court in New York State. No such order may be issued unless such chief administrator or chief judge of such United States district court is satisfied that such mailing list is needed to compile a proper list of prospective jurors for the county or such United States district court for which such order is sought and that, in view of the responsibilities imposed by the various laws of the

1 state on the department, it is reasonable to require the commissioner to
2 furnish such list. Such order shall provide that such list shall be used
3 for the sole purpose of compiling a list of prospective jurors and that
4 such commissioner of jurors, or such county clerk, or clerk of the court
5 or jury administrator of such United States district court shall take
6 all necessary steps to insure that the list is kept confidential and
7 that there is no unauthorized use or disclosure of such list. Further-
8 more, nothing herein shall be construed to prohibit the delivery to a
9 taxpayer or [~~his or her~~] their duly authorized representative of a
10 certified copy of any return or report filed in connection with [~~his or~~
11 ~~her~~] their tax or to prohibit the publication of statistics so classi-
12 fied as to prevent the identification of particular reports or returns
13 and the items thereof, or the inspection by the attorney general or
14 other legal representatives of the state of the report or return of any
15 taxpayer or of any employer filed under section one hundred
16 seventy-one-h of this chapter, where such taxpayer or employer shall
17 bring action to set aside or review the tax based thereon, or against
18 whom an action or proceeding under this chapter or under this chapter
19 and article eighteen of the labor law has been recommended by the
20 commissioner, the commissioner of labor with respect to unemployment
21 insurance matters, or the attorney general or has been instituted, or
22 the inspection of the reports or returns required under this article by
23 the comptroller or duly designated officer or employee of the state
24 department of audit and control, for purposes of the audit of a refund
25 of any tax paid by a taxpayer under this article, or the furnishing to
26 the state department of labor of unemployment insurance information
27 obtained or derived from quarterly combined withholding, wage reporting
28 and unemployment insurance returns required to be filed by employers
29 pursuant to paragraph four of subsection (a) of section six hundred
30 seventy-four of this article, for purposes of administration of such
31 department's unemployment insurance program, employment services
32 program, federal and state employment and training programs, employment
33 statistics and labor market information programs, worker protection
34 programs, federal programs for which the department has administrative
35 responsibility or for other purposes deemed appropriate by the commis-
36 sioner of labor consistent with the provisions of the labor law, and
37 redisclosure of such information in accordance with the provisions of
38 sections five hundred thirty-six and five hundred thirty-seven of the
39 labor law or any other applicable law, or the furnishing to the state
40 office of temporary and disability assistance of information obtained or
41 derived from New York state personal income tax returns as described in
42 paragraph (b) of subdivision two of section one hundred seventy-one-g of
43 this chapter for the purpose of reviewing support orders enforced pursu-
44 ant to title six-A of article three of the social services law to aid in
45 the determination of whether such orders should be adjusted, or the
46 furnishing of information obtained from the reports required to be
47 submitted by employers regarding newly hired or re-hired employees
48 pursuant to section one hundred seventy-one-h of this chapter to the
49 state office of temporary and disability assistance, the state depart-
50 ment of health, the state department of labor and the workers' compen-
51 sation board for purposes of administration of the child support
52 enforcement program, verification of individuals' eligibility for one or
53 more of the programs specified in subsection (b) of section eleven
54 hundred thirty-seven of the federal social security act and for other
55 public assistance programs authorized by state law, and administration
56 of the state's employment security and workers' compensation programs,

1 and to the national directory of new hires established pursuant to
2 section four hundred fifty-three-A of the federal social security act
3 for the purposes specified in such section, or the furnishing to the
4 state office of temporary and disability assistance of the amount of an
5 overpayment of income tax and interest thereon certified to the comp-
6 troller to be credited against past-due support pursuant to section one
7 hundred seventy-one-c of this chapter and of the name and social securi-
8 ty number of the taxpayer who made such overpayment, or the disclosing
9 to the commissioner of finance of the city of New York, pursuant to
10 section one hundred seventy-one-l of this chapter, of the amount of an
11 overpayment and interest thereon certified to the comptroller to be
12 credited against a city of New York tax warrant judgment debt and of the
13 name and social security number of the taxpayer who made such overpay-
14 ment, or the furnishing to the New York state higher education services
15 corporation of the amount of an overpayment of income tax and interest
16 thereon certified to the comptroller to be credited against the amount
17 of a default in repayment of any education loan debt, including judg-
18 ments, owed to the federal or New York state government that is being
19 collected by the New York state higher education services corporation,
20 and of the name and social security number of the taxpayer who made such
21 overpayment, or the furnishing to the state department of health of the
22 information required by paragraph (f) of subdivision two and subdivision
23 two-a of section two thousand five hundred eleven of the public health
24 law and by subdivision eight of section three hundred sixty-six-a of the
25 social services law, or the furnishing to the state university of New
26 York or the city university of New York respectively or the attorney
27 general on behalf of such state or city university the amount of an
28 overpayment of income tax and interest thereon certified to the comp-
29 troller to be credited against the amount of a default in repayment of a
30 state university loan pursuant to section one hundred seventy-one-e of
31 this chapter and of the name and social security number of the taxpayer
32 who made such overpayment, or the disclosing to a state agency, pursuant
33 to section one hundred seventy-one-f of this chapter, of the amount of
34 an overpayment and interest thereon certified to the comptroller to be
35 credited against a past-due legally enforceable debt owed to such agency
36 and of the name and social security number of the taxpayer who made such
37 overpayment, or the furnishing of employee and employer information
38 obtained through the wage reporting system, pursuant to section one
39 hundred seventy-one-a of this chapter, as added by chapter five hundred
40 forty-five of the laws of nineteen hundred seventy-eight, to the state
41 office of temporary and disability assistance, the department of health
42 or to the state office of the medicaid inspector general for the purpose
43 of verifying eligibility for and entitlement to amounts of benefits
44 under the social services law or similar law of another jurisdiction,
45 locating absent parents or other persons legally responsible for the
46 support of applicants for or recipients of public assistance and care
47 under the social services law and persons legally responsible for the
48 support of a recipient of services under section one hundred eleven-g of
49 the social services law and, in appropriate cases, establishing support
50 obligations pursuant to the social services law and the family court act
51 or similar provision of law of another jurisdiction for the purpose of
52 evaluating the effect on earnings of participation in employment, train-
53 ing or other programs designed to promote self-sufficiency authorized
54 pursuant to the social services law by current recipients of public
55 assistance and care and by former applicants and recipients of public
56 assistance and care, (except that with regard to former recipients,

1 information which relates to a particular former recipient shall be
2 provided with client identifying data deleted), to the state office of
3 temporary and disability assistance for the purpose of determining the
4 eligibility of any child in the custody, care and custody or custody and
5 guardianship of a local social services district or of the office of
6 children and family services for federal payments for foster care and
7 adoption assistance pursuant to the provisions of title IV-E of the
8 federal social security act by providing information with respect to the
9 parents, the stepparents, the child and the siblings of the child who
10 were living in the same household as such child during the month that
11 the court proceedings leading to the child's removal from the household
12 were initiated, or the written instrument transferring care and custody
13 of the child pursuant to the provisions of section three hundred fifty-
14 eight-a or three hundred eighty-four-a of the social services law was
15 signed, provided however that the office of temporary and disability
16 assistance shall only use the information obtained pursuant to this
17 subdivision for the purpose of determining the eligibility of such child
18 for federal payments for foster care and adoption assistance pursuant to
19 the provisions of title IV-E of the federal social security act, and to
20 the state department of labor, or other individuals designated by the
21 commissioner of labor, for the purpose of the administration of such
22 department's unemployment insurance program, employment services
23 program, federal and state employment and training programs, employment
24 statistics and labor market information programs, worker protection
25 programs, federal programs for which the department has administrative
26 responsibility or for other purposes deemed appropriate by the commis-
27 sioner of labor consistent with the provisions of the labor law, and
28 redisclosure of such information in accordance with the provisions of
29 sections five hundred thirty-six and five hundred thirty-seven of the
30 labor law, or the furnishing of information, which is obtained from the
31 wage reporting system operated pursuant to section one hundred seventy-
32 one-a of this chapter, as added by chapter five hundred forty-five of
33 the laws of nineteen hundred seventy-eight, to the state office of
34 temporary and disability assistance so that it may furnish such informa-
35 tion to public agencies of other jurisdictions with which the state
36 office of temporary and disability assistance has an agreement pursuant
37 to paragraph (h) or (i) of subdivision three of section twenty of the
38 social services law, and to the state office of temporary and disability
39 assistance for the purpose of fulfilling obligations and responsibil-
40 ities otherwise incumbent upon the state department of labor, under
41 section one hundred twenty-four of the federal family support act of
42 nineteen hundred eighty-eight, by giving the federal parent locator
43 service, maintained by the federal department of health and human
44 services, prompt access to such information as required by such act, or
45 to the state department of health to verify eligibility under the child
46 health insurance plan pursuant to subdivisions two and two-a of section
47 two thousand five hundred eleven of the public health law, to verify
48 eligibility under the medical assistance and family health plus programs
49 pursuant to subdivision eight of section three hundred sixty-six-a of
50 the social services law, and to verify eligibility for the program for
51 elderly pharmaceutical insurance coverage under title three of article
52 two of the elder law, or to the office of vocational and educational
53 services for individuals with disabilities of the education department,
54 the commission for the blind and any other state vocational rehabili-
55 tation agency, for purposes of obtaining reimbursement from the federal
56 social security administration for expenditures made by such office,

1 commission or agency on behalf of disabled individuals who have achieved
2 economic self-sufficiency or to the higher education services corpo-
3 ration for the purpose of assisting the corporation in default
4 prevention and default collection of education loan debt, including
5 judgments, owed to the federal or New York state government; provided,
6 however, that such information shall be limited to the names, social
7 security numbers, home and/or business addresses, and employer names of
8 defaulted or delinquent student loan borrowers, or to the office of the
9 state comptroller for purposes of verifying the income of a retired
10 member of a retirement system or pension plan administered by the state
11 or any of its political subdivisions who returns to public employment,
12 or to the New York state donate life registry established pursuant to
13 section forty-three hundred ten of the public health law for the
14 purposes of enrolling individuals as organ donors pursuant to section
15 one hundred seventy-one-bb of this chapter.

16 § 8. This act shall take effect on the one hundred eightieth day after
17 it shall have become a law; provided, however, that if section 3 of
18 chapter 128 of the laws of 2025 shall not have taken effect on or before
19 such date then section three of this act shall take effect on the same
20 date and in the same manner as such section of such chapter of the laws
21 of 2025, takes effect; and provided further, that if section 5 of chap-
22 ter 662 of the laws of 2024 shall not have taken effect on or before
23 such date then section five of this act shall take effect on the same
24 date and in the same manner as such section of such chapter of the laws
25 of 2024, takes effect. Effective immediately, the addition, amendment
26 and/or repeal of any rule or regulation necessary for the implementation
27 of this act on its effective date are authorized to be made and
28 completed on or before such effective date.